

SANTA CRUZ COUNTY
BOARD OF SUPERVISORS AGENDA
Governmental Center Building
701 Ocean Street, Room 525, Santa Cruz, CA
January 12, 2016

9:00 - Roll Call - Consent Agenda - Oral Communications - Scheduled and Regular Departmental Items	12:00 - Lunch
10:30 - Recess	
10:45 - Scheduled and Regular Departmental Items	

1. Roll Call
2. Moment of Silence and Pledge of Allegiance
3. Consideration of Late Additions to the Agenda; additions and deletions to Consent and Regular Agendas
4. Action on the Consent Agenda
5. **ORAL COMMUNICATIONS** - Any person may address the Board during its Oral Communications period. Presentations must not exceed three (3) minutes in length or the time limit established by the Chair, and individuals may speak only once during Oral Communications. All Oral Communications must be directed to an item not listed on today's Consent or Regular Agenda, and must be within the jurisdiction of the Board. Board members will not take actions or respond immediately to any Oral Communications presented, but may choose to follow up at a later time, either individually, or on a subsequent Board of Supervisor's Agenda. Oral Communications will normally be received by the Board for a period not to exceed thirty (30) minutes. If, at the end of this period, additional persons wish to address the Board under Oral Communications, the Oral Communications period may be continued to the last item on the Regular Agenda.

TRANSLATION SERVICES/SERVICIOS DE TRADUCCION

Spanish language translation is available on an as needed basis. Please make advance arrangements with the Clerk of the Board, in Room 500, or by telephone at (831) 454-2323.

Las sesiones de la Mesa Directiva de los Supervisores del Condado pueden ser traducidas del inglés al español y del español al inglés. Por favor haga arreglos anticipadamente con la Secretaria de la Mesa Directiva de los Supervisores en el cuarto número 500, o por teléfono al número (831) 454-2323.

ACCOMMODATIONS FOR PERSONS WITH DISABILITIES

The County of Santa Cruz does not discriminate on the basis of disability, and no person shall, by reason of a disability, be denied the benefits of its services, programs, or activities. The Board of Supervisors' Chambers, located at 701 Ocean Street, Room 525, Santa Cruz, California is located in an accessible facility. If you are a person with a disability and wish to attend the meeting and you require special assistance in order to participate, please contact the Clerk of the Board at (831) 454-2323 (TDD number (831) 454-2123) at least 72 hours in advance of the meeting in order to make arrangements. Persons with disabilities may request a copy of the agenda in an alternative format. As a courtesy to those affected, please attend the meeting smoke and scent free.

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NOTE: Agenda documents may be reviewed at the office of the Clerk of the Board, Room 500, Governmental Center, at the Santa Cruz Main Library, and on the Internet at www.santacruzcounty.us. The Board of Supervisors meetings are televised live on Community Television of Santa Cruz County, Comcast Cable Channel 26 and Charter Channel 72.

To send comments on a particular agenda item to the Board of Supervisors to be entered into the public record, go to the County web site at www.santacruzcounty.us, open the agenda and click on the email icon next to the particular item. Email comments are accepted from the time the agenda is posted on the web until 8:30am on the day of the Board Meeting. Email comments sent to the attention of an individual supervisor are not required to be entered into the public record.

CONSENT AGENDA

General Government

6. Accept claims as approved by the Auditor-Controller-Treasurer-Tax Collector (on file with the Clerk of the Board)
7. Approve minutes of December 8, 2015 and December 15, 2015, as recommended by the Clerk of the Board
8. Approve the reading by Title of all ordinances considered for adoption that may appear on this agenda and further waive a detailed reading of said ordinances, as recommended by County Counsel
9. Adopt ordinance amending Section 7.38.080 of the Santa Cruz County Code relating to Existing Sewage Disposal Systems--Building Alterations (approved in concept December 15, 2015; Item No. 34)
10. Adopt ordinance amending Chapter 13.13 of the Santa Cruz County Code relating to Water Efficient Landscaping (approved in concept December 15, 2015; Item No. 53)
11. Reject claim of Tim Woods, Claim No. 516-028 and refer to County Counsel
12. Reject claim of Tami Winemiller, Claim No. 516-029 and refer to County Counsel
13. Reject claim of Mary Freeland, Claim No. 516-030 and refer to County Counsel
14. Reject claim of David Turner, Claim No. 516-031 and refer to County Counsel
15. Accept and file Treasurer quarterly cash count, as recommended by the Auditor-Controller-Treasurer-Tax Collector
16. Accept and file the 2015 Annual Report on Applications for Tax Penalty Relief as recommended by the Auditor-Controller-Treasurer-Tax Collector

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General Government - (continued)

17. Accept and file status report on the CEMEX Plant Reuse Plan; approve the scope of work; authorize the Economic Development Manager and the Planning Director to issue a Request for Proposal for the purpose of hiring a land use consultant for the project, and direct staff to return with final agreements, as recommended by the County Administrative Officer
18. Ratify agreement with Green Charge Networks Energy Services, LLC, relating to the assignment of the County's contract, as recommended by the Director of General Services
19. Adopt resolution accepting and appropriating \$34,115 from Mosquito and Vector Control Service Area, approve contract amendment with Boone Low Ratliff Architects, Inc. in the amount of \$34,115 for the Mosquito and Vector Control Building Improvement Design Development Contract and take related actions, as recommended by the Director of General Services
20. Approve transfer of appropriations in the amount of \$20,000 within the General Services Fleet Operations Budget and approve purchase of three replacement rolling steel bay doors, as recommended by the Director of General Services
21. Approve the reallocation of funds in the amount of \$20,000 from the main jail perimeter evacuation fence project to the perimeter security system project; approve transfer of appropriations in the amount of \$14,694 within the Sheriff's Office Budget, adopt resolution accepting and appropriating unanticipated revenue in the amount of \$14,694 into the plant budget and approve contract with Argyle Security in the amount of \$119,382.49, as recommended by the Director of General Services
22. Accept the Notice of Completion for The Farm Community Garden and Stream and Habitat Resporation Project, Phase I in Soquel; approve the final cost of \$610,648.86; and authorize the Clerk of the Board to take related action, as recommended by the Director of General Services and the Director of Parks, Open Space & Cultural Services
23. Approve contract with Environmental Systems, Inc. in the amount of \$79,579 for the installation of direct digital controls at 1400 Emeline, adopt resolutions accepting unanticipated revenue in the amount of \$79,579, and take related actions, as recommended by the Director of General Services and the Director of Human Services
24. Approve the Memorandum of Understanding with the City and County of San Francisco for distribution of fiscal year 2015 Urban Area Security Initiative grant funding, adopt resolution accepting and appropriating unanticipated revenue in the amount of \$330,691, and authorize the Director of Information services to sign the Memorandum of Understanding and related documents, as recommended by the Director of Information Services

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General Government - (continued)

25. Approve the transfer of Radio Shop funds in the amount of \$37,606 from Fixed Assets to Services and Supplies, as recommended by the Director of Information Services
26. Approve Tentative Agreement and Memorandum of Understanding with the Deputy Probation Officer Association, and adopt resolution implementing provisions of the agreement, as recommended by the Personnel Director
27. Adopt resolution accepting and appropriating funds in the amount of \$150,000 from the U.S. Department of Justice for "Supporting Male Survivors of Violence" as recommended by the Chief Probation Officer
28. Adopt resolution authorizing the Sheriff's Office to participate in Year Two of the Board of State and Community Corrections Justice Assistance Grant in the amount of \$672,841, which funds the Sheriff's Recovery Center, and authorize the Sheriff to sign the grant agreement, as recommended by the Sheriff-Coroner
29. Accept nomination of Donald N. Hagen for appointment to the Santa Cruz Metropolitan Transit District Board of Directors, as an at-large representative, for a term to expire December 31, 2020, with final appointment to be considered on January 26, 2016, as recommended by Supervisor Caput
30. Accept nomination of Louis J. Tuosto for appointment to the Seniors Commission, as a fourth district representative, for a term to expire April 1, 2019, with final appointment to be considered on January 26, 2016, as recommended by Supervisor Caput
31. Accept nomination of Eileen Hamilton for appointment to the Assessment Appeals Board (First Panel), as an at-large representative, for a term to expire September 3, 2018, with final appointment to be considered on January 26, 2016, as recommended by Chairman Caput
32. Accept notification of vacancies on the Library Advisory Commission, for representatives of Districts 1, 2 and 5, with nominations for appointment to be received on January 26, 2016, and final appointment to be considered on February 9, 2016, as recommended by Chairman Caput
33. Accept and file Parks and Recreation Commission bi-annual report for calendar years 2014 and 2015, and direct the Chairman to thank the members of the Parks and Recreation Commission for their work, as recommended by Chairman Caput

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Health and Social Services

34. Approve agreement with the University Corporation at Monterey Bay in the amount of \$35,652 for the California State University Monterey Bay to evaluate the Bob Lee Community Partnership for Accountability and the Serial Inebriate Program, and authorize the Health Services Agency Director to sign; approve a budget transfer of \$17,826 from contingencies to the Health Services Agency for the County's 50% share of the cost of the contract; authorize issuance of a formal request letter and invoice to the City of Santa Cruz for \$17,826; adopt a resolution to accept and appropriate the unanticipated revenue as the City's 50% share of the cost of the contract; and direct the Health Services Agency to return with the contract's final evaluation report for approval when complete, as recommended by the Director of Health Services
35. Approve a new rate expenditure agreement with The Lotus Collaborative, Inc. for provision of specialized eating disorder treatment services, and authorize the Health Services Agency Director to sign, as recommended by the Director of Health Services
36. Adopt resolution authorizing the County of Santa Cruz to submit a grant application to the American Psychiatric Association (APA) Stepping Up Summit, to include associated costs of attendance, as recommended by the Director of Health Services, the Chief of Probation Officer, and the Sheriff-Coroner
37. Authorize a gross pay adjustment in the amount of \$502.49 for one extra help employee in the Health Services Agency, as verified by the Personnel Department and the Auditor-Controller's office, as recommended by the Director of Health Services
38. Adopt resolutions endorsing a boundary modification for the Santa Margarita Groundwater Basin and the Mid-County Groundwater Basin; and approve in concept a draft new Joint Exercise of Powers Agreement, as modified with proposed changes, for formation of a Santa Cruz Mid-County Groundwater Management Agency, as recommended by the Director of Health Services
39. Adopt resolution accepting and appropriating unanticipated revenue in the amount of \$90,434 into the FY 2015-16 Human Services Department Budget; approve FY 2015-16 contract amendment with Cabrillo Community College District for a new amount not to exceed \$237,527 for student subsidized employment services; and authorize the Human Services Department Director to execute the agreements, as recommended by the Director of Human Services

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Land Use and Public Projects

40. Accept the Parks and Recreation Commission's recommendation and approve LEO's Haven as the name for the inclusive playground at Chanticleer Park, as recommended by the Director of Parks, Open Space & Cultural Services
41. Adopt resolution accepting unanticipated revenue in the amount of \$45,000, approve a Grant Agreement with the Resource Conservation District of Santa Cruz County for Quail Hollow Ranch, and authorize the Parks Director to sign, as recommended by the Director of Parks, Open Space, & Cultural Services
42. Ratify payment for emergency sewer repair work completed at 265 Water Street in the amount of \$29,204, as recommended by the Director of Public Works
43. Ratify emergency contract with Drill Tech Drilling & Shoring for the East Cliff Drive at Manzanita Avenue Emergency repair project for a not-to-exceed amount of \$156,850, and authorize the Director of Public Works to sign the original contract on behalf of the County, as recommended by the Director of Public Works
44. Accept the improvement and approve final cost of \$ 81,721 for the Granite Creek Guardrail Project, and take related actions, as directed by the Director of Public Works

**SANTA CRUZ COUNTY
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Executive Session

- 44.1 SCHEDULE A CLOSED PERSONNEL AND LITIGATION SESSION TO BE HELD AT THE CONCLUSION OF THE BOARD'S CONSENT OR REGULAR AGENDA, OR AT ANY OTHER TIME DURING THE COURSE OF THE MEETING ANNOUNCED BY THE CHAIRPERSON OF THE BOARD

CONFERENCE WITH LEGAL COUNSEL - EXISTING LITIGATION

Robert Lindblad v. County of Santa Cruz, Workers' Compensation Case
Number ADJ10155768

REPORT OF COUNTY COUNSEL - will be given at the conclusion of the closed session on any reportable action(s) taken in the closed session.

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REGULAR AGENDA

SCHEDULED AND REGULAR DEPARTMENTAL ITEMS - 9:00 A.M. or thereafter

45. Consider selection of Chairperson and Vice-Chairperson for calendar year 2016
 - a. Letter of Supervisor Caput, dated December 14, 2015

46. Continued public hearing on portion of the Unified Fee Schedule related to proposed increases to Parking Citation Violation fees at 701 Ocean Street (continued from December 15, 2015, Item no. 54)
 - a. Letter of General Services Director dated January 6, 2016
 - b. Fee Changes Table-parking citations
 - c. Fee Information Worksheet-parking citations
 - d. Fee Changes Table-parking permit
 - e. Fee Information Worksheet-parking permit

Regarding public hearing items: If any person challenges an action taken on the foregoing matter(s) in court, they may be limited to raising only those issues raised at the public hearing described in this notice or in written correspondence delivered to the Board of Supervisors at or prior to the public hearing.

The time limit for seeking judicial review of any decision approving or denying an application for a permit, license or other entitlement, or revoking a permit, license or other entitlement is governed by Code of Civil Procedure Section 1094.6 and is no later than the 90th day following the date on which the decision is made (unless a shorter time limit is specified for the type of action by State or Federal law, in which case the shorter time limit shall apply).

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REGULAR AGENDA

SCHEDULED AND REGULAR DEPARTMENTAL ITEMS - A.M. (continued)

47. Public hearing to consider adoption of the 2015 Santa Cruz County Housing Element (Attachments 1-11 on file with Clerk of the Board, and available for viewing at www.sccoplanning.com)
- a. Letter of the Planning Director dated December 31, 2015
 - b. Proposed Resolution (Attachment 1)
 - c. Proposed 2015 Housing Element (Attachment 2)
 - d. Proposed Negative Declaration (Attachment 3)
 - e. Proposed Negative Declaration (Attachment 4)
 - f. HAC Resolution (Attachment 5)
 - g. Minutes from 12/2/15 HAC Meeting (Attachment 6)
 - h. Planning Commission Resolution (Attachment 7)
 - i. Minutes from 12/9/15 Planning Commission Meeting
 - j. Correspondence on CEQA Determination (Attachment 9)
 - k. Response to Correspondence Regarding Proposed CEQA Document
 - l. Other correspondence (Attachment 11)
 - m. Related correspondence, Wittwer Parkin letter dated January 6, 2016 (Exhibits A-F on file with Clerk of the Board and available for viewing on the County's website)

Regarding public hearing items: If any person challenges an action taken on the foregoing matter(s) in court, they may be limited to raising only those issues raised at the public hearing described in this notice or in written correspondence delivered to the Board of Supervisors at or prior to the public hearing.

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WRITTEN CORRESPONDENCE LISTING:

The Written Correspondence Listing is established to act as a report of materials received by the Board as a whole but may also include items requested for inclusion by individual Supervisors. Upon completion of any actions deemed necessary (i.e., acknowledgement, referral, etc.), these items are included in the Written Correspondence Listing under the appropriate heading. While these items are not part of the official record of meetings of the Board of Supervisors, they will be maintained by the Clerk of the Board for a period of two years, after which time they may be destroyed after the County's Historic Resources Commission has been provided an opportunity for review.

- I. The Board of Supervisors has received agendas and minutes from the following County advisory bodies (to be filed):

Agricultural Policy Advisory Commission
Alcoholism and Drug Abuse Commission
Emergency Medical Care Commission
Housing Advisory Commission
Santa Cruz-Monterey-Merced Managed Medical Care Commission

- II. The Board of Supervisors has received applications from the following persons for appointment to County advisory bodies (to be filed):

Louis J. Tuosto, Seniors Commission

- III. The Board of Supervisors has received the following items of correspondence which require no official action by the Board at this time:

- a) Copy of application related to the alcoholic beverage license for La Madrona Vineyard & Winery, 1851 La Madrona Drive, Santa Cruz (copies to Environmental Health, Planning, and Sanitation Engineering)
- b) Copy of application related to the alcoholic beverage license for Soquel Quality Meats, 4623 Soquel Drive, Soquel (copies to Environmental Health, Planning, and Sanitation Engineering)
- c) Copy of application related to the alcoholic beverage license for Quick Stop Markets, #66, 5960 Highway 9, Felton (copies to Environmental Health, Planning, and Sanitation Engineering)
- d) Copy of application related to the alcoholic beverage license for Partage Wine, 10 Pine Flat Road, Santa Cruz (copies to Environmental Health, Planning, and Sanitation Engineering)

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- e) Copy of application related to the alcoholic beverage license for Boulder Creek Golf & Country Club, 16901 Big Basin Way, Boulder Creek (copies to Environmental Health, Planning, and Sanitation Engineering)
- f) 2015 Attendance Report for the Emergency Medical Care Commission
- g) 2015 Attendance Report for the Equal Employment Opportunity Commission
- h) 2015 Attendance Report for the Arts Commission
- i) Copy of a Notice of Determination of the University of California at Santa Cruz to the State Office of Planning and Research regarding the Materials Sciences Laboratories Phase 1 and Phase 2 Projects
- j) Copy of correspondence of Charlie Peters relating to automobile emission controls
- k) Proclamation issued by Supervisor Leopold honoring Neal Cassady for his contribution to Santa Cruz County as a Merry Prankster
- l) Proclamation issued by Supervisor Leopold honoring Mike Hagen for his contribution to Santa Cruz County as a Merry Prankster
- m) Proclamation issued by Supervisor Leopold honoring Ron Bevirt for his contribution to Santa Cruz County as a Merry Prankster
- n) Proclamation issued by Chairman Caput declaring January 2016 as Positive Parenting Awareness Month
- o) Letter of Jon D. Snellstrom, Associate Governmental Program Analyst, State Fish and Game Commission, conveying a copy of a notice of proposed regulatory action relating to central valley salmon sport fishing
- p) Letter of Jon D. Snellstrom, Associate Governmental Program Analyst, State Fish and Game Commission, conveying a copy of a notice of proposed regulatory action relating to special measures for fisheries at risk due to drought conditions
- q) Letter of Sherrie Fonbuena, Associate Governmental Program Analyst, State Fish and Game Commission, conveying a copy of a notice of proposed regulatory action relative to Pacific halibut sport fishing
- r) Letter of Sherrie Fonbuena, Associate Governmental Program Analyst, State Fish and Game Commission, conveying a copy of a notice of proposed regulatory action relative to ocean salmon sport fishing

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- s) Letter of Sheri Tiemann, Associate Governmental Program Analyst, State Fish and Game Commission, conveying a copy of proposed regulatory action listing the Clear Lake hitch as a threatened endangered species
- t) Letter of Amy Gutierrez, Pharm.D., President, California State Board of Pharmacy, acknowledging previous correspondence relating to the draft proposed regulations on pharmaceutical take-back programs
- u) Letter of Nick Bulaich conveying his concerns relative to the December 15, 2015, Board meeting item regarding commercial cultivation of medical cannabis
- v) Letter of Congresswoman Anna Eshoo relative to FAA noise issues
- w) Letter of Soquel Creek Water District conveying appreciation for the Board meeting presentation on November 10, 2015, relating to the status addressing saltwater intrusion, conservation, and overall water needs in the community (acknowledged by Chairman Caput, copies to Director of Parks, Director of Public Works, Planning Director, John Ricker, Public Works, and John Swenson, Public Works)
- x) Letter of Dan Quinto, Chair, Emergency Medical Care Commission, conveying the Commission's support for the expansion of the drug and alcohol treatment resources and Health Services Agency Strategic Plan for Substance Abuse disorders (acknowledged by Chairman Caput)
- y) Letter of Henry Cleveland, Chair, Mobile and Manufactured Home Commission, regarding the eligibility guidelines for the Cal Home Mortgage Assistance Program and the Cal Home Manufactured Home Replacement Program (acknowledged by Chairman Caput, copy to Planning)